

26NWCV00337 26NWCV00337

County: los-angeles

Division: Civil Law and Motion

Department: SEC

Hearing date: 2026-07-22

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Case Number: 26NWCV00337 Hearing Date: July 22, 2026 Dept: SEC

MICHAEL REEVES vs WHITTIER FIRST DAY COALITION, A NON PROFIT ENTITY, et al., Case No. 26NWCV00337

Plaintiff Michael Reeves applies ex parte for stay of security requirement pending appellate review of this Court's July 1, 2026 Order declaring Plaintiff a vexatious litigant pursuant to CCP § 391. As part of the Order, the Court required Plaintiff to post security with the Court in the amount of \$1000.00 within 30 days. To date, no bond has been posted. Plaintiff filed a Notice of Appeal on July 1, 2026. The Court issued a Notice of Default for Designation on July 17, 2026 due to Plaintiff's failure to file proof of service of the Notice of Appeal. Here, Plaintiff's ex parte application suffers from the same infirmity. Plaintiff's Proofs of Service filed July 2, 2026 and July 6, 2026 do not indicate service upon all parties to the litigation. As to the merits, Plaintiff's ex parte application for stay pending appeal must be denied because the Court's July 1 Order is not directly appealable. "An order determining a party to be a vexatious litigant and requiring the posting of security under section 391.3 is not directly appealable. But if the plaintiff subsequently fails to furnish security, an appeal lies from the subsequent order or judgment of dismissal that follows under section 391.4." (Golin v. Allenby (2010) 190 Cal.App.4th 616, 635.) Accordingly, the ex parte application is DENIED. Defendant County of Los Angeles to give notice.